

Ripu Daman v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 August 2021 · WRIT - C No. - 16618 of 2021 · **Writ disposed; bill-correction dispute remitted under Clause 6.5(b)(ii).**

HEADNOTE

A writ that disputes only the correctness of an electricity bill is not decided on merits. The consumer is sent to the Clause 6.5(b)(ii) objection-and-deposit route before the Executive Engineer, with a short stay of coercive recovery pending that objection.

FACTUAL SUMMARY

Ripu Daman filed a writ petition in the Allahabad High Court challenging a citation dated 14 October 2020 seeking electricity charges of Rs. 54,815, and a demand for the same amount under a bill dated 6 November 2020. The only controversy he raised was the correctness of that claim. At the hearing he was permitted, on an oral prayer, to implead the Executive Engineer as respondent no. 4. The State and the distribution licensee were represented.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill correction — Clause 6.5 remittal

HOLDING

Where the only dispute in a writ is the correctness of an electricity bill, the prayer for correction is referable to Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The petition is disposed of by directing that if the consumer complies with Clause 6.5(b)(ii) within two weeks and deposits the specified sum (here Rs. 11,000) before the Executive Engineer, that authority may pass appropriate orders on the correction prayer within two weeks thereafter. Coercive recovery is stayed for four weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ was not decided on the bill's correctness; the Court treated Clause 6.5 as the statutory route and disposed of the petition by sending the consumer there. ¶ 1

bill-correction-clause-6.5 The prayer to correct a claimed electricity charge of Rs. 54,815 was held referable to Clause 6.5 and left to the Executive Engineer after Clause 6.5(b)(ii) compliance. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A disputed bill of Rs. 54,815 was channelled to the Clause 6.5(b)(ii) deposit-and-objection mechanism rather than writ adjudication. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL OF RS. 54,815

Left to the Executive Engineer on a Clause 6.5 objection after the directed deposit. ¶ 1